

26STCP01126 26STCP01126

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Case Number: 26STCP01126 Hearing Date: July 21, 2026 Dept: 834

Superior Court of California

County of Los Angeles

Department 834

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STANFORD NEIGHBORS AGAINST CITY OVERREACH,

Petitioner(s),

vs.

CITY OF
SANTA MONICA,

Respondent(s).

Case No.:

26STCP01126

Hearing Date:

July 21, 2026

[TENTATIVE]

ORDER RE: DEMURRER

Respondent City of Santa Monica ("Respondent") and Real Party Stanford Del Mar ("RPI"), named as a respondent, (collectively, "Movants") demur to Stanford Neighbors Against City Overreach's ("Petitioner") verified first amended petition for writ of mandate and complaint for declaratory relief ("FAP").

As detailed below, the demurrer is sustained.

I.

Factual Allegations

The FAP, filed on April 29, 2026, alleges as follows.

RPI owns property located at 1101 Stanford St., Santa Monica, CA 90403 ("Property"). (FAP, ¶ 6.)

On October 1, 2023, RPI filed an application to separate the Property into two parcels with four residential units on each. (FAP, ¶ 22.) On February 13, 2024, Respondent City Planner Ross Fehrman ("Fehrman") preliminarily approved the application, including a tentative map. (FAP, ¶ 23.)

Petitioner challenged RPI's division project in *SNACO v. City of Santa Monica*, et al., LASC no. 24STCP02065, and, on May 9, 2025, RPI abandoned its division project. (FAP, ¶ 25.)

On June 10, 2025, the City passed Emergency Interim Zoning Ordinance ("EIZO") 2816 to permit accessory dwelling units ("ADUs") in projects under the Starter Home Revitalization Act ("SHRA") (Government Code[1] sections 66499.41 and 65852.28, as amended effective July 1, 2025) effective for sixty days. (FAP, ¶ 26.) On July 29, 2025, Respondent passed EIZO 2821 extending the provisions of EIZO 2816 through December 31, 2026. (FAP, ¶ 30.) On October 24, 2025, Petitioner filed *SNACO v. City of Santa Monica*, LASC no. 25STCP04108, challenging EIZO 2821. (FAP, ¶ 31.)

On October 29, 2025, RPI filed an SHRA application to subdivide the Property into eight residential units ("Project"). (FAP, ¶ 32.) RPI did not utilize EIZO 2821's ADU allowance. (Ibid.)

On December 22, 2025, Respondent City Planner Ross Fehrman

("Fehrman") approved the vesting tentative map in RPI's application. (FAP, ¶ 33.) Fehrman found the Project was not a multiple-unit project as defined by Santa Monica Municipal Code ("SMMC") section 9.64.020, therefore concluding no Affordable Housing Fee was required under SMMC section 9.65.070. (FAP, ¶ 34.)

Petitioner alleges that the vesting tentative map does not conform with SMMC section 9.28.120, subdivision (9)(a), constraining driveway size and number, and the front setback was improperly approved. (FAP, ¶ 35.) Fehrman did not consider whether the vesting tentative map conflicts with local ordinances. (FAP, ¶ 36.)

Petitioner further alleges that the Property is located in a delineated earthquake fault zone, and therefore is not eligible for SHRA subdivision until demonstration of compliance with applicable seismic protection building code standards. (FAP, ¶ 37.) Fehrman did not consult any seismic report for the Property, and no such report was included with the application. (FAP, ¶ 38.)

Fehrman did not consider whether the Project would have a specific, adverse impact on public health and safety with no feasible method to satisfactorily mitigate or avoid. (FAP, ¶ 39.) Evidence suggests the Project might negatively impact parking, sewage, and garbage collection in the neighborhood and limit fire and emergency access to a parking lot. (FAP, ¶ 39.)

The FAP brings its first cause of action for traditional mandamus on the basis that SHRA only allows ministerial approval of tentative maps, not vesting tentative maps, because the Property is not eligible for subdivision under SHRA for lack of compliance with seismic protection building code standards, and because the vesting tentative map does not comply with various sections of the SMMC. (FAP, ¶¶ 45-64.) Petitioner seeks a writ of mandate directing Respondent to set aside its approval of RPI's SHRA application, and directing Respondent to deny the application or, alternatively, referring the application to Respondent's Planning Commission with direction to the Planning Commission to apply the Affordable Housing Fee. (FAP, Prayer, ¶¶ 1-4.)

The FAP brings its second cause of action for declaratory relief seeking a declaration that SHRA does not provide local agencies with the power to ministerially approve vesting tentative maps. (FAP, ¶¶ 65-74, Prayer, ¶ 5.)

II.

Procedural History

The petition was filed on March 19, 2026. Proofs of service filed April 3, 2026 show Petitioner personally served the summons and petition on RPI on March 19, 2026 and on Respondent on March 23, 2026. On April 29, 2026, Petitioner filed the FAP.

On May 26, 2026, Respondent and RPI demurred to the FAP.

On July 16, 2026, the Court, on its own motion, briefly continued the hearing on the demurrer to July 21, 2026.

III.

Legal Standard

A demurrer tests the legal sufficiency of the pleading alone and will be sustained where the pleading is defective on its face.

A demurrer may be asserted on any one or more of the following grounds: (a) The court has no jurisdiction of the subject of the cause of action alleged in the pleading; (b) The person who filed the pleading does not have legal capacity to sue; (c) There is another action pending between the same parties on the same cause of action; (d) There is a defect or misjoinder of parties; (e) The pleading does not state facts sufficient to constitute a cause of action; (f) The pleading is uncertain ("uncertain" includes ambiguous and unintelligible); (g) In an action founded upon a contract, it cannot be ascertained from the pleading whether the contract is written, is oral, or is implied by conduct; (h) No certificate was filed as required by Code of Civil Procedure ("CCP") section 411.35 or (i) by CCP section 411.36. (CCP §430.10.) Accordingly, a demurrer tests the sufficiency of a pleading, and the grounds for a demurrer must appear on the face of the pleading or from judicially noticeable matters. (CCP §430.30(a); *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The face of the pleading includes attachments and incorporations by reference (*Frantz v. Blackwell* (1987) 189 Cal.App.3d 91, 94); it does not include inadmissible hearsay. (*Day v. Sharp*, (1975) 50 Cal.App.3d 904, 914.)

The sole issue on demurrer for

failure to state a cause of action is whether the facts pleaded, if true, would entitle the plaintiff to relief. (*Garcetti v. Superior Court* (1996) 49 Cal.App.4th 1533, 1547 ["*Garcetti*"]; *Limandri v. Judkins* (1997) 52 Cal.App.4th 326, 339.) The question of plaintiff's ability to prove the allegations of the complaint or the possible difficulty in making such proof does not concern the reviewing court. (*Quelimane Co. v. Stewart Title Guaranty Co.*, (1998) 19 Cal.4th 26, 47.) The ultimate facts alleged in the complaint must be deemed true, as well as all facts that may be implied or inferred from those expressly alleged. (*Marshall v. Gibson, Dunn & Crutcher*, (1995) 37 Cal.App.4th 1397, 1403 ["*Marshall*"].) Nevertheless, this rule does not apply to allegations expressing mere conclusions of law, or allegations contradicted by the exhibits to the complaint or by matters of which judicial notice may be taken. (*Vance v. Villa Park Mobilehome Estates*, (1995) 36 Cal.App.4th 698, 709 ["*Vance*"].)

IV.

Requests for Judicial Notice

Movants seek judicial notice of the following exhibits: (1) Vesting Tentative Tract Map no. 84334 (RJN Ex. A); (2) the ministerial approval of the Project (RJN Ex. B); (3) the §§ 65852.28 & 66499.41 Project Compliance Conformance Review dated December 22, 2025 (RJN Ex. C); (4) the Statement of Official Action dated December 22, 2025 (RJN Ex. D); (5) Senate Bill ("SB") 684 Senate Rules Committee Senate Floor Analyses (RJN Ex. E); (6) SB 684 (RJN Ex. F); (7) SHRA (RJN Ex. G); (8) SMMC sections 9.54.030, 9.54.070, and 9.54.140 (RJN Ex. H); (9) SMMC sections 9.64.020, 9.64.030, 9.64.040 (RJN Ex. I); (10) SMMC section 9.51.020 (RJN Ex. J); (11) SMMC section 7.04.180 (RJN Ex. K); (12) SMMC section 9.28.120 (RJN Ex. L); (13) SMMC section 9.52.020 (RJN Ex. M); and (14) the SB 330 Preliminary Application for the Property submitted October 23, 2025 (RJN Ex. N).

Requests 1-5 are official acts subject to judicial notice. (Evid. Code § 452(c).) Requests 6-13 are legislative enactments subject to judicial notice. (Evid Code § 452(b).) These requests are granted.

Request 14 is not an official act or otherwise subject to judicial notice and is therefore denied.

In reply, Movants seek judicial notice of the following exhibits: (1) SMMC section 8.12.010 (Reply RJN Ex. A); (2) SMMC section

8.04.010 (Reply RJN Ex. B); (3) SMMC Article 8 Building Regulations, Table of Contents (Reply RJN Ex. C); and (4) SMMC Article 9 Planning and Zoning, Table of Contents (Reply RJN Ex. D).

These requests are legislative enactments subject to judicial notice and are granted. (Evid. Code § 452(b).)

On July 15, 2026, one day before the originally scheduled hearing, Movants served and filed a “Supplemental Request for Judicial Notice” in support of their demurrer. That request is DENIED as untimely. The Court does not rely on it to resolve the instant dispute.

V.

Analysis

Movants demur to the first and second causes of action of the FAP on the grounds that they fail to allege facts sufficient to constitute a cause of action.

1.

Mandamus

Generally, mandamus will lie when (1) there is no plain, speedy, and adequate alternative remedy, (2) the respondent has a duty to perform, and (3) the petitioner has a clear and beneficial right to performance.” (Pomona Police Officers’ Assn. v. City of Pomona (1997) 58 Cal.App.4th 578, 583-84 [internal citations omitted].)

a.

The SHRA Authorizes Ministerial Approval of Vesting Tentative Maps

Movants argue the mandamus claim fails because, as a matter of law, a vesting tentative map is a tentative map and can therefore be used in place of, and be processed in the same manner as, a tentative map. Petitioner argues that, where the SHRA expedites the process for a tentative map but does not mention a vesting tentative map, it applies only to a non-vesting tentative map. The disagreement is purely a matter of law.

The relevant portions of the statutory regime provide as

follows:

Section 66424.5 defines the terms “tentative map” and “vesting tentative map”. (§ 66424.5.) “‘Tentative map’ refers to a map made for the purpose of showing the design and improvement of a proposed subdivision and the existing conditions in and around it and need not be based upon an accurate or detailed final survey of the property.” (§ 66424.5(a).) “‘Vesting tentative map’ refers to a map which meets the requirements of subdivision (a) and Section 66452.” (§ 66424.5(b).) Section 66452, in turn, sets out the procedures governing tentative maps. Subdivision (a) describes how a tentative map is filed. (§ 66452(a).) Subdivision (b) provides that a vesting tentative map “shall be filed and processed in the same manner as a tentative map, except as otherwise provided by this division or by a local ordinance adopted pursuant to this division.” (§ 66452(b).) Subdivision (c) adds that a vesting tentative map must conspicuously display the words “Vesting Tentative Map” on its face. (§ 66452(c).)

SMMC section 9.54.030 sets out the procedures for processing both tentative maps and vesting tentative maps. (SMMC § 9.54.030.) SMMC section 9.54.140 establishes special procedures for projects proposing ten or fewer units that satisfy the requirements of Government Code section 66499.41. (SMMC § 9.54.140(B)(1)(b).) Under these special procedures, eligible projects are exempt from Planning Commission approval when subdividing pursuant to section 66499.41. (SMMC § 9.54.140(C)(2)(a).)

Government Code section 66499.41 requires local agencies to “ministerially consider, without discretionary review or a hearing, a parcel map or a tentative and final map” for qualifying housing developments.

Movants contend that this ministerial directive necessarily encompasses vesting tentative maps because the Subdivision Map Act defines a vesting tentative map as a form of tentative map and mandates that it be filed and processed in the same manner as a tentative map. (Gov. Code §§ 66424.5(b), 66452(b).) Petitioner responds that the Legislature’s use of the term “tentative map,” without expressly mentioning “vesting tentative maps,” invokes the exception in section 66452(b) permitting different treatment where “otherwise provided” by statute or by local ordinance.

The Court agrees with Movants. Section 66424.5(b) provides that a vesting tentative map “meets the requirements” of the definition of a

tentative map; the Legislature thus established that a vesting tentative map is a subset of tentative maps. Section 66452(b) reinforces this by requiring that vesting tentative maps “shall be filed and processed in the same manner as a tentative map,” unless another provision or ordinance affirmatively prescribes a different rule. In other words, a vesting tentative map is a tentative map in the same way that a blue car is a car. Read together, these provisions indicate that the term “tentative map” includes “vesting tentative map” unless a statute or ordinance expressly distinguishes between them.

No such contrary provision applies here. Accordingly, when the SHRA directs local agencies to “ministerially consider, without discretionary review or a hearing, parcel map or a tentative and final map,” that directive applies equally to vesting tentative maps. (§ 66499.41(a).)

Because this is a pure question of law, and because Movants have shown that Respondent had statutory authority to ministerially approve the vesting tentative map, the FAP does not state a cause of action for mandamus on this theory. Leave to amend is not warranted.[2]

b.

The FAP Does Not State a Claim Under the AHPP

Petitioner argues that, because it alleges the Project consists of eight townhouses which are by definition multiple-unit projects (SMMC § 9.64.020), and because the Court must accept Petitioner’s allegations as true for the purpose of demurrer, the Court must conclude the Project is a multiple-unit project under the Affordable Housing Production Program (“AHPP”). Movant counters that Petitioner’s allegation that the Project consists of eight townhouses is a legal conclusion (“Reply at 9 [“On demurrer, the Court is not required to accept petitioner’s label for the project as a substitute for facts.”)]), or that even if it is a fact, judicially noticeable evidence proves the Project units are not townhouses.

The SMMC does not define “townhouse,” and neither party offers a definition. The Court takes judicial notice of the Merriam-Webster Dictionary’s definition of “town house” in its primary sense: “a usually single-family house of two or sometimes three stories that is usually connected to a similar house by a common sidewall.”

The Court first addresses whether, under the demurrer

standard, it must accept Petitioner's allegation that the Project units are townhouses. Because "townhouse" is not a defined term in the SMMC and is not a legal term of art, the characterization is a factual allegation rather than a legal conclusion. As such, the Court must accept it as true at this stage. (Marshall, supra, 37 Cal.App.4th at 1403.) Although the Court need not accept allegations contradicted by judicially-noticeable materials (Vance, supra, 36 Cal.App.4th at 709), Movants' judicially noticed documents do not establish that the Project units are not townhouses. Accordingly, for purposes of demurrer the Court accepts the FAP's allegation that the units are townhouses.

The Court next addresses the interpretation of "multiple-unit project" under the Code. SMMC section 9.64.020 defines "multiple-unit project" as "a multiple-unit residential development, including, but not limited to, apartments, condominiums, townhouses or the multiple-unit residential component of a mixed-use project, for which City permits and approvals are sought." (SMMC §9.64.020.) Relatedly, SMMC section 9.51.020(A)(3) defines a "multiple-unit dwelling" as "[t]wo or more dwelling units within a single building or within 2 or more buildings on a site or parcel." (SMMC §9.51.020(A)(3).)

Movants interpret "multiple-unit project" to mean a project involving the construction of a multiple-unit dwelling, whereas Petitioner argues that any project involving more than one dwelling unit qualifies. [3] The text of SMMC section 9.64.020 supports Movants' interpretation. The non-exhaustive list in section 9.64.020 (apartments, condominiums, townhouses, and the multiple-unit residential component of a mixed-use project) enumerates development types that, under the SMMC's use classifications, fall within or correspond to "multiple-unit dwellings." (SMMC §9.51.020(A)(3).) The inclusion of "the multiple-unit residential component of a mixed-use project" further indicates that the ordinance contemplates projects with distinct components, only some of which may qualify as "multiple-unit projects." This structure is incompatible with Petitioner's interpretation, which would deem any mixed-use project containing more than one dwelling unit a "multiple-unit project" in its entirety, regardless of component type.

Additionally, although the list in section 9.64.020 is not exhaustive, it conspicuously excludes projects involving multiple single-unit dwellings on separate parcels, which is precisely the type of development the City approved here. Nothing in the ordinance suggests that constructing multiple single-unit dwellings transforms a project into a "multiple-unit project" when those dwellings do not collectively form a "multiple-unit

dwelling.” Although the Court accepts, for purposes of demurrer, Petitioner’s allegation that the units are townhouses in the ordinary architectural sense, that characterization does not determine whether the Project qualifies as a “multiple-unit project” under the SMMC. The legal classification turns on the Code’s definitional structure, which requires a multiple-unit dwelling rather than multiple single-unit dwellings of any particular architectural type.

Finally, long-standing authority holds that “an agency’s view of the meaning and scope of its own ordinance is entitled to great weight unless clearly erroneous or unauthorized.” (*Friends of Davis v. City of Davis* (2000) 83 Cal.App.4th 1004, 1015; *Anderson v. San Francisco Rent Stabilization & Arbitration Bd.* (1987) 192 Cal.App.3d 1336, 1343; *Anderson First Coalition v. City of Anderson* (2005); 130 Cal.App.4th 1173, 1193; *City of Monterey v. Carrnshimba* (2013) 215 Cal.App.4th 1068, 1091; *Harrington v. City of Davis* (2017) 16 Cal.App.5th 420, 434.) The City interpreted the AHPP not to apply because each dwelling is located on its own single parcel and is classified as a single-unit dwelling. Petitioner does not identify a basis to find this interpretation clearly erroneous.

Accordingly, the Court accepts Movants’ interpretation that a “multiple-unit project” refers to a project to construct a multiple-unit dwelling. The FAP therefore does not state a claim based on the AHPP.

c.

The Vesting Tentative Map Is Not Inconsistent
with Objective Standards

While the FAP alleges the Project conflicts with several portions of the SMMC, Movants argue that the judicially noticed approved application shows the Project is consistent with the SMMC. The FAP identifies that the driveway for Lot 8 is less than ten feet wide in violation of SMMC section 9.28.120, subdivision (B)(9)(a).[4] (FAP, ¶¶ 35, 56-57, 64.) The FAP also identifies that the driveways have widths totaling over 28% of the frontage of their lots in violation of SMMC section 7.04.180.[5] (FAP, ¶¶ 35, 54, 64.)

Movant offers the approved Project application which shows the Lot 8 driveway will be ten feet wide. (RJN Ex. B at p. 9.) In opposition, Petitioner argues that, plan notwithstanding, the driveway will be less than

ten feet, noting an easement it alleges will prevent RPI from constructing the driveway in accordance with the plan. (Opp. at 6-7; FAP, ¶ 57.)

Petitioner's allegation to the contrary is insufficient to overcome the judicially noticed approved plan, which demonstrates that the Lot 8 driveway will be ten feet wide.

Movant argues that the SMMC section 7.04.180 restriction provides an exception for lots zoned for single-family use allowing such lots to have a single driveway not exceeding fourteen feet in width regardless of the frontage percentage. Movant offers the approved Project plan to show the lots are zoned for single-family use, and each lot has a single driveway not wider than fourteen feet. (RJN Ex. B at 9.) In opposition, Petitioner argues that the SMMC "clearly does not contemplate eight driveways for eight adjacent (and narrow) parcels, even if they are all zoned for single family residential use." (Opp. at 7.)

The Court disagrees. The SMMC appears to specifically contemplate single-family parcels so narrow that they cannot have a sufficiently large driveway without that driveway exceeding 28% of the frontage. (SMMC § 7.04.180.) In those cases, the SMMC allows a driveway not exceeding fourteen feet wide notwithstanding frontage length. (SMMC § 7.04.180.)

Petitioner also argues the FAP alleges the insufficient curb lengths will cause safety issues. (Opp. at 7; FAP, ¶ 55.) Petitioner urges the court to overrule the demurrer "to allow the parties to obtain more information regarding whether and how eight driveways serving eight narrow parcels might affect neighborhood safety standards and/or obstruct emergency access." (Opp. at 7.) However, this is not the standard on demurrer. The pleadings on their face must state facts sufficient to constitute a cause of action. (Garcetti, supra, 49 Cal.App.4th at 1547.)

All alleged inconsistencies with the SMMC are contradicted by judicially noticeable facts. Accordingly, the FAP fails to state a claim for mandamus on this basis. As judicially noticed evidence shows compliance with all identified SMMC sections, leave to amend is not appropriate.

2.

Declaratory Relief

Movants allege the second cause of action for declaratory relief is duplicative and derivative of the first cause of action for traditional mandamus. Petitioner does not address this argument (see generally Opp.). The Court agrees.

Accordingly, the second cause of action survives only as to the applicability of the Affordable Housing Fee.

VI.

Conclusion

The demurrer is SUSTAINED without leave to amend.

All dates are advanced and vacated. Respondent is ordered to serve and file a judgment of dismissal within 5 court days of this order. The Court sets a Non-Appearance Case Review for July 28, 2026.

Date: July 21, 2026

HON. TIANA J. MURILLO

PLEASE TAKE NOTICE:

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Parties

are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

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If

a party intends to submit on this tentative ruling, the party may send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

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Unless

all parties submit by email to this tentative ruling, the parties should

arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

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If

the parties neither submit nor appear at hearing, the court may take the matter off calendar or adopt the tentative ruling as the order of the court. After the court has issued a tentative ruling, the court may prohibit the withdrawal of the matter without leave.

[1]

All further statutory references are to the Government Code unless otherwise stated.

[2]

Movants also argue that under the SHRA (Gov. Code §66499.41) and the Housing Accountability Act (Gov. Code §65589.5), a local agency may deny a qualifying subdivision only upon written findings that the project would create a specific, adverse, and unmitigable impact on public health and safety. (§§66499.41(f), 65589.5(d)(2).) The FAP alleges no such impacts. Petitioner does not address this argument, and Movants are correct that the statutory standard would not have permitted Respondent to deny the vesting tentative map on the grounds alleged. Accordingly, the FAP fails to state a claim for mandamus on this basis as well.

[3]

Petitioner dismisses Respondent's interpretation as an ex post facto justification for its conclusion and urges the Court to allow discovery "to determine how the City concluded that the Affordable Housing Fee did not apply." (Opp. at 6.) Petitioner misunderstands the standard for writ relief under CCP section 1085. Petitioner seeks to compel Respondent to deny RPI's application or, alternatively, to compel Respondent to direct the application to Planning Commission for review. (FAP, Prayer, ¶¶ 1-3.) Petitioner specifically alleges that Respondent reviewed the application ministerially, not discretionally. (FAP, ¶ 8.) Because Petitioner seeks to compel ministerial duties, abuse of discretion is not the standard. Therefore, Respondent's original process and rationale are not relevant. Petitioner must show that the law, operating on the facts, required specific, prescribed action by Respondent, and Respondent either failed to take that action or took inconsistent action. (Carrancho v. California Air Resources Board (2003)

111 Cal.App.4th 1255, 1267, quoting Rodriguez, supra, 1 Cal.App.4th at 501-02.)

[4]

The FAP refers to SMMC section 9.28.120, subdivision (9)(a). (FAP, ¶ 35.) The Court infers subdivision (B)(9)(a).

[5]

The FAP also alleges that “[t]he front setback on Lipton St. was...improperly approved.” (FAP, ¶ 35.) As this is a pure legal conclusion unsubstantiated by any further allegations, the Court need not accept it.